

24TRCV03730 24TRCV03730

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Case Number: 24TRCV03730 Hearing Date: July 21, 2026 Dept: P

Motion to Substitute Successors in Interest

Moving Party: Plaintiff Donald Anderson

Responding Party: None

RULING

The court considered the moving papers. The Motion to Substitute Successors in Interest is GRANTED.

PROCEDURAL BACKGROUND

On November 5, 2024, Plaintiff Tracy Richmond ("Plaintiff Richmond") filed a complaint against Defendants City of Torrance, City of Los Angeles, City of Gardena, Long Beach Transit, Los Angeles County Metropolitan Transportation Authority, County of Los Angeles, State of California, California Department of Transportation, MV Transportation, Inc., John Doe, and DOES 1 through 50, inclusive (collectively, "Defendants"), alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On November 5, 2024, Plaintiff Tina Marie White ("Plaintiff White") filed a complaint against Defendants, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On November 5, 2024, Plaintiff Donald Anderson ("Plaintiff Anderson") filed a complaint against Defendants, alleging two causes of action for: (1) Motor Vehicle; and (2) General Negligence.

On January 17, 2025, the court found that Plaintiff Richmond's, Plaintiff White's, and Plaintiff Anderson's cases are related.

On March 3, 2025, Defendant Los Angeles County Metropolitan Transportation Authority filed a cross-complaint against Cross-Defendant City of Torrance and ROES 1 through 50, inclusive, alleging four causes of action for: (1) Comparative Indemnity and Apportionment of Fault; (2) Total Equitable Indemnity; (3) Declaratory Relief; and (4) Negligence and Property Damage.

On March 6, 2025, Defendant State of California, by and through the Department of Transportation, filed a cross-complaint against Cross-Defendant County of Los Angeles, Metropolitan Transit Authority, alleging three causes of action for: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On May 8, 2025, Defendant Los Angeles County Metropolitan Transportation Authority filed a cross-complaint against Cross-Defendant City of Torrance and ROES 1 through 50, inclusive, alleging four causes of action for: (1) Comparative Indemnity and Apportionment of Fault; (2) Total Equitable Indemnity; (3) Declaratory Relief; and (4) Negligence and Property Damage.

On April 22, 2026, the instant motion was filed on Plaintiff Anderson's behalf.

FACTUAL BACKGROUND

Plaintiff Anderson alleges that on November 27, 2023, Plaintiff was a passenger on a bus when the bus violently collided into another bus, injuring Plaintiff. (Pltf. Anderson Complaint, p. 8.)

LEGAL STANDARD

Code of Civil Procedure Section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc. Section 377.31.)

Code of Civil Procedure Section 377.32 provides that a person who seeks to commence such an action as the decedent's successor in interest must file an affidavit or declaration providing the following:

1. The decedent's name;
2. The date and place of the decedent's death;
3. "No proceeding is now pending in California for administration of the decedent's estate."
4. If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest;
5. Either of the following, as appropriate, with facts in support thereof:
 - A. "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding."
 - B. "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding."
6. "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding."

7. "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

(Code Civ. Proc. Section 377.32(a).)

A certified copy of the decedent's death certificate must also be attached to the affidavit or declaration. (Code Civ. Proc. Section 377.32(c).)

DISCUSSION

Moving Party's Argument

Plaintiff Anderson's counsel states that Plaintiff Anderson passed away and is survived by his seven sole and surviving heirs who are the proposed successors in interest.

Merits of the Motion

The proposed successors in interest are Plaintiff Anderson's seven surviving heirs, Shunterry Ray Anderson, Shalanda Monique Anderson, Donald Anderson Jr., Jasmine Denice Anderson, Diamond Renee Anderson, Taninko Caprice Anderson, and D'Angelo Anderson (collectively, "the Anderson Heirs").

Here, a copy of Plaintiff Anderson's death certificate is attached to each of the Anderson Heirs' declarations as Exhibit A. Each of the Anderson Heirs declare that on October 23, 2025, Plaintiff Anderson died due to cardiogenic shock at the age of 60 at Martin Luther King Jr. Community Hospital in Los Angeles, California. (Anderson Heirs Declarations, ¶ 2.) Each of the Anderson Heirs declares that "[n]o proceeding is now pending in the State of California for administration of the Estate of Decedent Plaintiff Donald Anderson." (Anderson Heirs Declarations, ¶ 3.) Each of the Anderson Heirs declares that they are one of Plaintiff Anderson's children, and at the time of Plaintiff Anderson's death, he was not legally married. (Anderson Heirs Declarations, ¶ 5.) Each Anderson Heir declares that they are "one of the successors in interest to the Estate of [Plaintiff Anderson], as defined in Section 377.11 of the Code of Civil Procedure and succeed[s] to [Plaintiff Anderson's] interest in the above-entitled proceeding." (Anderson Heirs Declarations, ¶ 4.) Finally, each Anderson Heir declares that "no other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding other than [the Anderson Heirs]." (Anderson Heirs Declarations, ¶ 8.)

Shalanda Monique Anderson declares that she has "discussed this matter extensively" with her siblings and they have "unanimously agreed that, if accepted by the court, to appoint myself, Shalanda Monique Anderson as Representative of all Successors to act on their behalf in this action." (Shalanda Monique Decl., ¶ 6.)

The court finds that the instant motion substantially complies with Code of Civil Procedure Section 377.32.

Accordingly, the Motion to Substitute Successors in Interest is GRANTED.

CONCLUSION

Based on the foregoing, the Motion to Substitute Successors in Interest is GRANTED.

Moving party is ordered to give notice of ruling.